

SiyaBusa ERP

IP ASSIGNMENT AGREEMENT

Legal Documentation

Masaphokati Technologies (Pty) Ltd

Document Version: 1.0

Effective Date: January 2026

Department: Legal

Classification: Confidential

WE RULE. WE GOVERN. WE EMPOWER.

INTELLECTUAL PROPERTY ASSIGNMENT AGREEMENT

IP ASSIGNMENT AGREEMENT

Standard agreement for employees and contractors to assign intellectual property rights to Masaphokati Technologies.

This Intellectual Property Assignment Agreement ("Agreement") is entered into as of _____ ("Effective Date")

BETWEEN:

COMPANY:

Masaphokati Technologies (Pty) Ltd (trading as "SiyaBusa ERP")

Registration Number: _____

Address: _____

(hereinafter referred to as the "**Company**")

AND:

ASSIGNOR:

Full Name: _____

ID Number: _____

Address: _____

(hereinafter referred to as the "**Assignor**")

RECITALS

WHEREAS:

- A. The Company is engaged in the business of developing and providing enterprise resource planning software solutions;
- B. The Assignor is or will be engaged by the Company as an employee, contractor, or consultant;
- C. In the course of such engagement, the Assignor may create, develop, or contribute to intellectual property that the Company requires ownership of;
- D. The parties wish to record their agreement regarding the ownership and assignment of intellectual property.

NOW THEREFORE, the parties agree as follows:

1. DEFINITIONS

1.1 **"Intellectual Property"** or **"IP"** means all intellectual property rights, including but not limited to:

- (a) **Patents:** All patents, patent applications, and patentable inventions;
- (b) **Copyright:** All copyrights in software, source code, documentation, designs, graphics, text, and any other copyrightable works;
- (c) **Trade Secrets:** All trade secrets, know-how, techniques, processes, and confidential information;
- (d) **Trademarks:** All trademarks, service marks, trade names, logos, and brand elements;
- (e) **Database Rights:** All rights in databases and data compilations;
- (f) **Domain Names:** All internet domain names and associated rights;
- (g) **Other Rights:** All other intellectual property rights, whether registered or unregistered, and all applications therefor.

1.2 **"Work Product"** means all Intellectual Property created, developed, conceived, discovered, or reduced to practice by the Assignor, alone or with others:

- (a) During the term of engagement with the Company;
- (b) Using the Company's resources, facilities, or confidential information;
- (c) Relating to the Company's business, products, or services;
- (d) Arising from tasks assigned to the Assignor by the Company.

1.3 **"Company Materials"** means all documents, software, data, equipment, and materials owned by or licensed to the Company.

2. ASSIGNMENT OF INTELLECTUAL PROPERTY

2.1 Present Assignment

The Assignor hereby irrevocably assigns, transfers, and conveys to the Company all right, title, and interest in and to all Work Product, including without limitation:

- (a) All copyright and related rights;
- (b) All patent rights and rights to apply for patents;
- (c) All trade secret rights;
- (d) All moral rights, to the extent legally assignable;

- (e) All rights to sue for past, present, and future infringement;
- (f) All rights of attribution and integrity.

2.2 Future Assignment

The Assignor agrees that all Work Product created in the future during the term of engagement shall automatically be the sole and exclusive property of the Company from the moment of creation.

2.3 Work Made for Hire

To the extent permitted by applicable law, all Work Product shall be considered "work made for hire" for the Company. To the extent any Work Product does not qualify as work made for hire, the Assignor hereby assigns all rights therein to the Company.

2.4 Waiver of Moral Rights

To the fullest extent permitted by law, the Assignor waives and agrees not to assert any moral rights in the Work Product, including rights of attribution and integrity.

3. DISCLOSURE OBLIGATIONS

3.1 The Assignor agrees to promptly and fully disclose to the Company:

- (a) All Work Product created during the term of engagement;
- (b) All inventions, discoveries, and improvements, whether or not patentable;
- (c) All ideas, concepts, and suggestions relating to the Company's business;
- (d) Any third-party intellectual property that may be incorporated into Work Product.

3.2 Disclosures shall be made in writing to the Assignor's supervisor or the Company's designated IP officer.

4. FURTHER ASSURANCES

4.1 The Assignor agrees to:

- (a) Execute all documents and take all actions necessary to perfect the Company's ownership of Work Product;
- (b) Cooperate with the Company in applying for, obtaining, and enforcing intellectual property rights;
- (c) Provide all information and assistance required for patent and trademark applications;
- (d) Appear as a witness in legal proceedings relating to the Work Product if reasonably requested.

4.2 If the Assignor fails or refuses to execute any required documents, the Assignor hereby irrevocably appoints the Company as the Assignor's attorney-in-fact to execute such documents on the Assignor's behalf.

4.3 The Company shall reimburse the Assignor for reasonable out-of-pocket expenses incurred in providing assistance under this Section.

5. PRIOR INVENTIONS

5.1 The Assignor has listed in **Schedule A** all inventions, improvements, and works ("Prior Inventions") that:

- (a) Were created by the Assignor prior to engagement with the Company;
- (b) Belong to the Assignor;
- (c) May relate to the Company's current or anticipated business.

5.2 If no Prior Inventions are listed in Schedule A, the Assignor represents that there are no such Prior Inventions.

5.3 The Assignor will not incorporate any Prior Inventions into Work Product without the Company's prior written consent.

6. THIRD-PARTY IP

6.1 The Assignor represents and warrants that:

- (a) The Work Product will not infringe, misappropriate, or violate any third-party intellectual property rights;
- (b) The Assignor will not use any third-party materials without proper authorization;
- (c) The Assignor will promptly inform the Company if any third-party IP must be used.

6.2 If third-party IP is required, the Assignor shall:

- (a) Obtain the Company's written approval before use;
- (b) Ensure appropriate licenses are obtained;
- (c) Document all third-party components and their licenses.

7. RECORDS AND DOCUMENTATION

7.1 The Assignor agrees to maintain accurate records of:

- (a) All Work Product created;
- (b) The date and circumstances of creation;
- (c) All contributors to the Work Product;
- (d) Any third-party materials incorporated.

7.2 All records and documentation relating to Work Product shall be the property of the Company.

7.3 Upon request or termination of engagement, the Assignor shall deliver all records and documentation to the Company.

8. CONFIDENTIALITY

8.1 The Assignor agrees to maintain the confidentiality of all Work Product and Company Materials.

8.2 The Assignor shall not disclose any Work Product to third parties without the Company's prior written consent.

8.3 The obligations of confidentiality shall survive termination of this Agreement and the Assignor's engagement with the Company.

9. RETURN OF MATERIALS

9.1 Upon termination of engagement or upon request:

- (a) The Assignor shall promptly return all Company Materials;
- (b) The Assignor shall return all Work Product in the Assignor's possession;
- (c) The Assignor shall delete all electronic copies of Work Product from personal devices;
- (d) The Assignor shall provide written certification of compliance.

10. REPRESENTATIONS AND WARRANTIES

10.1 The Assignor represents and warrants that:

- (a) The Assignor has the full right and authority to enter into this Agreement;
- (b) The Assignor is not bound by any agreement that would prevent compliance with this Agreement;

- (c) All Work Product will be original work of the Assignor;
 - (d) The Assignor will not use confidential information from previous employers.
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11. TERM AND SURVIVAL

11.1 This Agreement shall be effective from the Effective Date and shall continue for the duration of the Assignor's engagement with the Company.

11.2 The provisions of Sections 2, 3, 4, 6, 7, 8, 9, and 10 shall survive termination of this Agreement and the Assignor's engagement indefinitely.

12. GOVERNING LAW

12.1 This Agreement shall be governed by and construed in accordance with the laws of the **Republic of South Africa**.

12.2 Any dispute arising from this Agreement shall be subject to the exclusive jurisdiction of the courts of the **Republic of South Africa**.

13. GENERAL PROVISIONS

13.1 **Entire Agreement:** This Agreement constitutes the entire agreement between the parties regarding its subject matter.

13.2 **Amendments:** No modification shall be effective unless in writing and signed by both parties.

13.3 **Severability:** If any provision is held invalid, the remaining provisions shall continue in effect.

13.4 **Assignment:** The Company may assign this Agreement. The Assignor may not assign without written consent.

13.5 **Waiver:** No waiver of any provision shall constitute a waiver of any other provision.

13.6 **Notices:** All notices shall be in writing and delivered to the addresses set forth above.

14. ACKNOWLEDGMENT

The Assignor acknowledges that:

- (a) The Assignor has read and understands this Agreement;
- (b) The Assignor has had the opportunity to seek independent legal advice;

(c) The Assignor enters into this Agreement voluntarily;

(d) The consideration provided by the Company (employment/engagement) is adequate consideration for this Agreement.

SIGNATURES

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

COMPANY: Masaphokati Technologies (Pty) Ltd

Signature:	_____
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Name:	Sibusiso Mavuso
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Title:	CEO & Founder
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Date:	_____
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ASSIGNOR:

Signature:	_____
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Name:	_____
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ID Number:	_____
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Date:	_____
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WITNESSES

Witness 1:

Signature:	_____
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Name:	_____
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ID Number:	_____
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Witness 2:

Signature:

Name:

ID Number:

SCHEDULE A: PRIOR INVENTIONS

List all Prior Inventions that belong to the Assignor and may relate to the Company's business:

No.	Title/Description	Date Created	Brief Description
1.			
2.			
3.			
4.			
5.			

Check here if no Prior Inventions exist.

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